

KMVTECH EDUCATION

IPL1 · Module 7

Designs and related rights

Lesson: Designs, GIs, secrets

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Industrial designs protect the ornamental or aesthetic aspect of an article (shape, pattern, colour). Protection requires novelty/originality and is usually registration-based with a shorter term than patents.

Geographical indications (GIs) identify goods as originating in a place where a given quality, reputation or characteristic is essentially attributable to that origin (e.g. certain coffees, teas, handicrafts). Protection prevents misuse of the indication.

Trade secrets protect confidential business information that has commercial value from not being generally known and is subject to reasonable secrecy measures. No registration; protection lasts as long as secrecy is maintained.

- These regimes complement patents, trade marks and copyright and are especially relevant for traditional products, fashion, packaging and know-how.

2. DETAILED RULES AND APPLICATION

Example: a unique bottle shape may be a design; 'Mount Elgon coffee' style indications may qualify as GIs; a secret manufacturing process is a trade secret if properly guarded.

Match the asset to the regime: appearance → design; origin-linked quality → GI; secret know-how → trade secret.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda has growing interest in GIs for agricultural and cultural products. Design registration and trade-secret litigation remain under-used relative to their potential for local industry.

Exam trap: trying to protect a functional technical feature solely as a design, or claiming perpetual rights over information that has entered the public domain.

Method: characterise the asset → select design / GI / secret regime → check formalities or secrecy measures → map exclusive rights and limits → plan enforcement or licensing.

Completes the portfolio of IP rights before the final enforcement and policy module.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What does an industrial design protect?
2. What is a geographical indication?
3. How long does trade-secret protection last?
4. Why are GIs useful for agricultural products?
5. What is required to maintain a trade secret?
6. When is design protection inappropriate?

Exam tip: Appearance, origin, secrecy — three distinct tools.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.